

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

BRENNAN SMITH,

Plaintiff,

v.

THE CITY OF NEW YORK and New York City  
Police Department ("NYPD") Lieutenant  
MARTIN MCKINNEY, Police Officer ("P.O.")  
PASCUAL MELO (Shield No. 6249); P.O.  
DAVID CARDENAS (Shield No. 6819); NYPD  
Members/Officers John Does Nos. 1-4, in their  
individual capacities,

Defendants.

INDEX NO.

**SUMMONS**

Plaintiff designates Kings County as the  
County of Venue based on the location where  
the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney,  
at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer  
must be served within 20 days after such service of the summons, excluding the date of  
service.

If the summons was not personally delivered to you within the State of New York, the  
answer must be served within 30 days after service of the summons is complete as provided  
by law.

If you do not serve an answer to the attached complaint within the applicable time  
limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in  
the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for  
the County of Kings. This action is brought in Kings County because it is the place in which  
the claim arose.

Dated: August 10, 2022  
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP  
99 Park Avenue, PH/26th Floor  
New York, New York 10016  
(212) 490-0400

By: 

David B. Rankin

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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BRENNAN SMITH,

Plaintiff,

**VERIFIED COMPLAINT AND  
DEMAND FOR A JURY TRIAL**

v.

Index No.

THE CITY OF NEW YORK and New York City Police Department ("NYPD") Lieutenant MARTIN MCKINNEY, Police Officer ("P.O.") PASCUAL MELO (Shield No. 6249); P.O. DAVID CARDENAS (Shield No. 6819); NYPD Members/Officers John Does Nos. 1-4, in their individual capacities,

Defendants.

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Plaintiff Brennan Smith ("Mr. Smith"), through his attorneys David B. Rankin and Deema Azizi of Beldock Levine & Hoffman, LLP, as and for his complaint, does hereby state and allege:

**PRELIMINARY STATEMENT**

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of New York State and New York City.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis assaulted, seized, detained, arrested, and searched him. By reason of defendants' actions, including defendants' arrest of Plaintiff without probable cause and subjecting Plaintiff to unreasonable and unlawful searches and seizures, Plaintiff was deprived of his constitutional, statutory, local law, and common law rights and suffered physical, emotional, and economic injury.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees and costs.

### **JURISDICTION AND VENUE**

4. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under the laws of New York State and New York City.

5. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a Notice of Claim with the New York City Comptroller, and the Comptroller designated the claim as number 2020PI003703. The notice of claim was timely for Plaintiff's state law malicious prosecution claim. Plaintiff attended a 50-h hearing on November 17, 2020.

6. On November 5, 2020, Plaintiff filed a petition in King County Supreme Court (index no. 521854/2020) seeking to determine the notice of claim to have been timely served, *nunc pro tunc*, and/or granting leave to serve a late notice of claim related to state law claims other than malicious prosecution. By order dated February 17, 2022, the petition was denied with respect to Plaintiff's state law claims except for malicious prosecution. Plaintiff's motion for reargument and/or renewal is currently pending before the Court under the same index number.

7. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the incident took place in Kings County. C.P.L.R. § 503 (a).

8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

### **PARTIES**

9. Plaintiff Brennan Smith is and was at all times relevant to the action, a resident of Kings County in the State of New York.

10. Defendant the City of New York (“City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. New York City Police Department (“NYPD”) Lieutenant MARTIN MCKINNEY, Police Officer (“P.O.”) PASCUAL MELO (Shield No. 6249); P.O. DAVID CARDENAS (Shield No. 6819); and NYPD Members/Officers John Does Nos. 1-4 (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees, and agents of the NYPD.

12. The true names and shield numbers of defendants NYPD Officers John Doe Nos. 1-4 are not currently known to the Plaintiff.<sup>1</sup> However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

13. The Individual Defendants are being sued in their individual capacities.

14. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and

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<sup>1</sup> By identifying said defendants as “John Doe” or “Richard Roe,” plaintiff is making no representations as to the gender of said defendants.

officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

15. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

16. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

#### **JURY DEMAND**

17. Plaintiff demands a trial by jury in this action on each one of his damage claims.

#### **STATEMENT OF FACTS**

18. On August 11, 2019, at or around 12:30 a.m., at around 849 Flushing Avenue in the County of Kings, State of New York, members of the New York Police Department ("NYPD") assaulted and arrested Mr. Smith without justification or probable cause.

19. Mr. Smith was walking with his friends, when NYPD members in an unmarked vehicle followed the group, including Mr. Smith, at a very close distance without justification or probable cause.

20. Upon information and belief, the individual defendants singled out Plaintiff because of his actual and/or perceived race and/or other protected status.

21. One of the Individual Defendants—whose description is approximately: male, approximately 5’6” - 5’7”, 150 to 200 lbs., tan-skinned (possibly Hispanic)—exited the unmarked vehicle and used unprovoked vulgar language against Mr. Smith.

22. Upon information and belief, this individual is Lieutenant Martin McKinney.

23. Individual Defendant(s) approached Mr. Smith and pushed Mr. Smith’s chest with force.

24. Individual Defendant(s) grabbed Mr. Smith, assaulted him on the pavement, and pulled at Mr. Smith’s arms, causing injury.

25. Individual Defendants, including an officer whose description is: male, White, average height, heavyset, bald; and an officer whose description is male, skinny to average build, also joined in exerting excessive force against Mr. Smith and applying unnecessary pressure against Mr. Smith’s body.

26. Defendant Lt. Martin McKinney then placed Mr. Smith in excessively tight handcuffs, causing pain and injury.

27. The Individual Defendants used excessive force against Mr. Smith even though Mr. Smith did not resist arrest.

28. None of the Individual Defendants intervened to stop the unlawful assault and false arrest of Mr. Smith, although they were aware, or should have been aware, that their colleagues were engaging in constitutional violations.

29. The Individual Defendants did not provide Mr. Smith with medical attention despite the injuries he sustained from the assault.

30. Mr. Smith was charged with PL 195.05 (Obstructing Governmental Administration in the Second Degree); PL 205.30 (Resisting Arrest); and PL 240.20(1) (Disorderly Conduct).

31. Defendant Lt. Martin McKinney made a false statement under oath causing false charges to be lodged against Mr. Smith.

32. Defendant NYPD Officer Pascual Melo (Shield No. 6249) was Mr. Smith's "arresting officer," and failed to intervene when Defendant Lt. Martin McKinney made a false statement under oath against Mr. Smith.

33. Defendants knew, or should have known, that they did not have credible evidence upon which to prosecute Mr. Smith but initiated and maintained a prosecution against him without probable cause.

34. After being arraigned, Mr. Smith had to attend multiple court dates to defend against the charges.

35. The charges against Mr. Smith were dismissed and sealed on motion of the prosecution pursuant to C.P.L. § 30.30 on or about November 13, 2019.

36. As a result of the officers' unlawful conduct, Mr. Smith experienced deprivation of liberty, physical injury, pain, suffering, humiliation, extreme mental and emotional anguish, and financial costs.

37. The NYPD members whose actions caused injury to Mr. Smith were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

**FIRST CLAIM FOR RELIEF  
DEPRIVATION OF RIGHTS  
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

38. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

39. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law to deprive plaintiff of certain constitutionally protected

rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from excessive force;
- d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- e. the right to be free from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants;
- f. the right to be free from the fabrication of evidence against him;
- g. the right to be free from malicious prosecution;
- h. the right to be free from being subjected to abuse of process;
- i. the right to equal protection, privileges, and immunities under the laws;

40. Defendant Lieutenant Martin McKinney and the other Individual Defendants used excessive force against Mr. Smith, and caused him to be falsely arrested, detained, and imprisoned.

41. Defendant Lieutenant Martin McKinney made false statements under oath causing false criminal charges to be lodged against Mr. Smith.

42. Defendant Pascual Melo failed to intervene upon receiving a false report from Defendant Lieutenant Martin McKinney, causing continued prosecution of Mr. Smith.

43. In committing the acts and omissions complained of herein, all of the Individual Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.



44. As a direct and proximate result of the individual defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

45. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

46. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

**SECOND CLAIM FOR RELIEF**  
**42 U.S.C. § 1983 - MONELL LIABILITY**  
**VIOLATIONS OF THE FOURTH AND FOURTEENTH AMENDMENTS**  
***(Against the City of New York)***

47. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

48. At all times material to this complaint, defendant City had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

49. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the Individual Defendants, and failed to inform the Individual Defendants' supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

50. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as

guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

**THIRD CLAIM FOR RELIEF**  
**ASSAULT AND BATTERY**

51. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

52. By the actions described above, Defendants did inflict assault and battery upon Plaintiff.

53. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. The individual defendant officers assaulted Plaintiff without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

55. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM FOR RELIEF**  
**FALSE ARREST AND FALSE IMPRISONMENT**

56. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

57. By the actions described above, Defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

58. Defendants caused to be falsely detained and imprisoned or falsely detained and imprisoned Plaintiff without legal justification, without the consent of Plaintiff, and while Plaintiff was aware of such detention and imprisonment.

59. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. The individual defendant officers arrested, detained, and imprisoned Plaintiff without probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

61. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FIFTH CLAIM FOR RELIEF**  
**INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

62. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

63. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to

Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. The individual defendant officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

65. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

**SIXTH CLAIM FOR RELIEF**  
**NEGLIGENCE**

66. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

67. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

68. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are thus directly chargeable to Defendant City of New York under the state law doctrine of *respondeat superior*.

69. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**SEVENTH CLAIM FOR RELIEF**  
**BIAS-BASED PROFILING**

70. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

71. By initiating law enforcement action against Plaintiffs based on his actual and/or perceived race and/or other protected status, rather than Plaintiffs' behavior or other information linking them to suspected unlawful activity, Defendants and Defendants' agents engaged in bias-based profiling in violation of N.Y.C. Admin. Code § 14-151(c)(1)(i) and (ii).

72. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

73. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**EIGHTH CLAIM FOR RELIEF**  
**VIOLATIONS OF N.Y.C. ADMINISTRATIVE CODE § 8-801, et. seq.**

74. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

75. By the actions described above, Defendants violated Plaintiff's right to be secure in his person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of N.Y.C. Administrative Code § 8-802, and Plaintiff seeks redress under N.Y.C. Admin Code § 8-801, *et seq.*

76. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

77. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**NINTH CLAIM FOR RELIEF**  
**VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

78. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

79. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of his rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiff was aware and did not consent;

iv. freedom from deprivation of liberty without due process of law; and

v. right to equal protection of the law.

80. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

81. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**TENTH CLAIM FOR RELIEF**  
**MALICIOUS PROSECUTION**

82. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

83. Defendants, despite knowing that probable cause did not exist to arrest, initiate, and continue the prosecution against Plaintiff on PL 195.05 (Obstructing Governmental Administration in the Second Degree); PL 205.30 (Resisting Arrest); and PL 240.20(1) (Disorderly Conduct), intentionally, recklessly, and with malice caused Plaintiff to be arrested, charged, and held in custody for those crimes.

84. The criminal case against Plaintiff was terminated in his favor when all charges against him were dismissed on or about November 13, 2019.

85. As a direct and proximate result of Defendants' actions, Plaintiff was prosecuted on two felony charges, imprisoned, had to defend against the charges against him through multiple

court appearances, and suffered the other grievous and continuing damages and injuries set forth in this complaint.

86. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

**ELEVENTH CLAIM FOR RELIEF**  
**ABUSE OF PROCESS**

87. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

88. By the conduct and actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and to seek a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process.

89. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

90. The Individual Defendants acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD



officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

91. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

**TWELFTH CLAIM FOR RELIEF**  
**DENIAL OR DELAY OF MEDICAL CARE AND/OR MEDICATION**

92. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

93. Defendants denied and/or delayed providing Plaintiff reasonable, good faith medical attention while he was in custody of NYPD members.

94. As a result, Plaintiff suffered serious injury or significant exacerbation of injury.

95. Defendants' conduct violated New York Civil Rights Law Section 28.

**THIRTEENTH CLAIM FOR RELIEF**  
**RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK**

96. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

97. The conduct of the individual defendants alleged herein, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or her duties and functions as NYPD officers, and/or while he or she was acting as an agent and employee of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiff pursuant to the state common law doctrine of *respondeat superior*.

98. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTEENTH CLAIM FOR RELIEF**  
**NEGLIGENT HIRING, SCREENING, RETENTION**

99. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

100. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiff's claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

101. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

102. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**WHEREFORE**, Plaintiff demands judgment against Defendants and prays for relief as follows:

- a. that he be compensated for violation of his constitutional rights, deprivation of liberty, physical injury, pain, suffering, mental and emotional anguish and humiliation; and

- b. that he be awarded punitive damages; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. for such other further and different relief as to the Court may deem just and proper.

Dated: August 10, 2022  
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP  
99 Park Avenue, PH/26th Floor  
New York, New York 10016  
(212) 490-0400

By:   
David B. Rankin  
Deema Azizi

**ATTORNEY'S VERIFICATION**

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: August 10, 2022  
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP  
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New York, New York 10016  
t: 212-277-5825  
e: drankin@blhny.com  
*Attorneys for Plaintiff*



By: \_\_\_\_\_  
David B. Rankin